

Nice International Limited & Anr vs State Nct Of Delhi And Ors on 1 May, 2025

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IN THE HIGH COURT OF DELHI AT NEW DELHI
CRL.REV.P. (NI) 112/2025

NICE INTERNATIONAL LIMITED & ANR.

Through:

Mr

versus

STATE NCT OF DELHI AND ORS

.....Responde

Through: Mr. Nawal Kishore Jha, APP fo
State.

CORAM:

HON'BLE MR. JUSTICE GIRISH KATHPALIA

ORDER

% 01.05.2025 [Physical Hearing/Hybrid Hearing (as per request)] CRL.M.A. 13222/2025
(exemption)

1. Allowed, subject to all just exceptions.

CRL.M.A. 13223/2025 (for condonation of delay of 114 days in refiling)

2. For the reasons mentioned therein, the application is allowed and delay in re-filing the appeal after removal of defects is condoned. CRL.M.(BAIL) 934/2025 (for suspension of sentence)

3. The revisionists have assailed judgment dated 07.11.2024 of the learned Additional Sessions Judge, whereby conviction and sentence under Section 138 Negotiable Instruments Act was upheld. The impugned sentence was the cheque amount with interest thereon at a rate of 9% per annum for five years and in default thereof, simple imprisonment for six months.

4. It is contended on behalf of revisionists that no offence under Section This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 26/06/2025 at 11:35:26 138 Negotiable Instruments Act can be made out in this case since initially the cheque in question was deposited for clearance in June 2013 and it got bounced; that thereafter, in September 2013, the cheque was again presented and it again bounced, which followed notice and the complaint. But admittedly, after bouncing of cheque in June 2013, no notice was issued.

5. Learned counsel for revisionists assures to deposit the entire fine amount with the Registry of this court within four weeks. Subject to doing so, the sentence is suspended till next date.

6. Learned APP accepts notice on behalf of State.

7. Subject to revisionists taking steps within one week, notice through all modes be issued to the respondent no.2 and 3, returnable on 25.08.2025.

GIRISH KATHPALIA, J MAY 1, 2025/ry Click here to check corrigendum, if any This is a digitally signed order.

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